

Our Ref: ALR:TS:13629
Your Ref: Matthew Shepherd

7 June 2024

Mr Shepherd
Ramsden Family Law
6 15 Castlereagh Street
Sydney NSW 2000

By Email only: mshepherd@ramsdenlaw.com.au

Dear Colleagues

Re: Cooke & Cooke

We refer to your letter dated 3 June 2024 regarding disclosure.

We are instructed to respond as follows, following your numbering:

1. Noted.
2. Noted. However, our client will only be providing bank statements for her sole accounts.
3. – (a)
 - i. We **enclose** bank statements for Westpac account ending #2136 for periods 9 August 2017 to 9 August 2022 and for periods 15 December 2023 to 4 June 2024.
 - ii. We **enclose** Westpac Business Cash Reserve bank statements for account ending #6533 for periods 29 December 2017 to 20 June 2023. Noting that you have the statements from June 2023 to November 2023 and the statements for periods 31 October 2023 to 29 February 2024 were provided to Clarity Lawyers on 8 April 2024, we **enclose** bank statements for periods 29 February 2024 to 31 May 2024.

SYDNEY | NEWCASTLE | ADAMSTOWN

T 1300 760 773
E hello@delaneyroberts.com.au

Telstra Civic, Suite 1, Level 2,
317 Hunter Street, Newcastle NSW 2300
274 Brunker Road, Adamstown NSW 2289
PO Box 206, Adamstown NSW 2289

www.delaneyroberts.com.au

Liability limited by a scheme approved under Professional Standards Legislation.
Roberts Legal Services Group Pty Limited ABN 74 128 628 599.



We have
Accredited Specialists
in Family Law



THE LAW SOCIETY OF NEW
SOUTH WALES
**PROFESSIONAL
STANDARDS SCHEME**

4. These statements are provided above at paragraph 3aii above.
5. We **enclose** Westpac Business One bank statements for account ending #6525 for periods 29 December 2017 to 30 June 2023. Noting that statements which included the periods 1 July 2023 to 29 February 2024 were provided to Clarity Lawyers on 8 April 2024, we **enclose** statements for periods 29 February 2024 to 31 May 2024.
6. This account belongs to your client.
7. We enclose screenshot of our client's bank account ending #2919 showing receipt of the settlement funds. Our client cannot provide the balance of the documents as they are not in her possession. Our client verily believes that these documents are in your client's possession in a storage area. Your client changed the locks and prohibited access to our client shortly after separation.
8. These documents are also located in the storage area. Please ask your client to provide them.
9. We **enclose** Westpac Loan bank statements for account ending #2919 for periods 7 July 2017 to 9 August 2018. The balance of these statements are included at paragraph 3ai above as the statements combined.
10. The account ending #2594 was a joint offset account connected to the parties' joint mortgage ending in #7778. Your client can obtain these statements himself.
11. An account ending in #5055 does not belong to, nor has it ever belonged to our client.
12. The account ending #5063 was a joint offset account connected to the parties' joint mortgage ending in #7671. Your client can obtain these statements himself.

We also take this opportunity to **enclose** our client's updated disclosure as follows:

1. Payslips from JHH Cardiology for periods 19 February 2024 to 26 May 2024,
2. Remittance Advices from NSW Health for periods March 2024 to May 2024,
3. Private practice reporting and service fees for the months of February 2024 to April 2024,
4. Westpac Low Fee Platinum Mastercard, account ending #2809 for periods 29 February 2024 to 28 May 2024,
5. QSuper – screenshot of balance as at 4 June 2024,
6. Telstra Dividend statement – payment date 28 March 2024, and
7. MRA Advantage – rental income statement for the Southport QLD property for periods 16 March 2024 to 7 June 2024.

Our client has established the "*Heather Anne Cooke Discretionary Trust*" and in that regard we **enclose** the Trust Deed dated 11 April 2024. The trust does not yet operate a bank account.

We look forward to receiving your client's updated disclosure documents as soon as possible.

In light of our client having now made a full updating disclosure, we are of the view that the Mediation scheduled for 18 June 2024 should proceed. Would you please confirm with the Mediator, Mr Foster, that your client is agreeable to proceed by 11 June 2024 as he has requested? In the event that your client refuses to attend on 18 June 2024, we are instructed to raise this issue and the matter of costs at the next Directions Hearing on 9 July 2024.

Yours faithfully

Delaney Roberts Family Lawyers



Anna Roberts
Director, Solicitor & Family Dispute Resolution Practitioner
BComn LLB GradDipLegPrac
M.AppLaw (Family Law) GradDip (FDRP)
email: aroberts@delaneyroberts.com.au
phone: 02 4952 3901